

Form No. INC-9



Form language

☒ English ☐ Hindi

Declaration by Subscribers and First Directors

[Pursuant to Sections 7(1)(c) to the Companies Act, 2013
and rule 15 of the Companies (Incorporation) Rules, 2014]

Refer instruction kit for filing the form

*All fields marked in * are mandatory*

1. *Name of the Company

KUDRA AGRO INDIA PRIVATE LIMITED

2(a) This declaration is in respect of:

	Having valid DIN	Not having valid DIN
*Total number of first subscribe(non-individual + individual)	0	3
*Number of non-individual first subscriber(s)		0
*Number of individual first subscriber(s) cum director(s)	0	3
*Total number of directors (director(s) who is/are not subscriber(s) + subscriber(s) cum director(s) as mentioned in above Row no. 3)	0	3

2(b) Authorized persons of non-individual first subscriber(s)

Declaration

2(b)(i) *Director Identification Number (DIN)

I * being the subscriber to the memorandum, of the above-named proposed company, hereby solemnly declare and affirm that:

☐ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and

☐ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years;

☐ I am required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares and the same has been obtained, and is enclosed herewith; or

☐ I am not required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares; and

☐ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.

☐ I provide my consent to the proposed conversion of the entity and have no objection to the same.

☐ I am a member of the company applying for registration under Part I of Chapter XXI of the Companies Act, 2013 and hereby undertake as per Rule 3(4) and Rule 5(i) of Companies (Authorised to Register) Rules that in the event of registration under this Part, necessary documents or papers shall be submitted to the registering or other authority with which the company was earlier registered, within 15 days, for its dissolution, as the case may be. I further undertake that no activity / business shall be carried out in the name and style of the previous / converted entity; and

☐ I declare that the proposed company has its objects in accordance with clause (a) of subsection (1) of section 8 of the Act and it intends to comply with the restrictions and prohibitions as mentioned respectively in clause (b) and clause (c) of that sub-section

☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and

☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

*DSC

Declaration

I * being the subscriber to the memorandum, of the above-named proposed company, hereby solemnly declare and affirm that:

- ☐ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and
- ☐ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years;
- ☐ I am required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares and the same has been obtained, and is enclosed herewith; or
- ☐ I am not required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares; and
- ☐ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.
- ☐ I provide my consent to the proposed conversion of the entity and have no objection to the same.
- I am a member of the company applying for registration under Part I of Chapter XXI of the Companies Act, 2013 and hereby undertake as per Rule 3(4) and Rule 5(i) of Companies (Authorised to Register) Rules that in the event of registration under
- ☐ this Part, necessary documents or papers shall be submitted to the registering or other authority with which the company was earlier registered, within 15 days, for its dissolution, as the case may be. I further undertake that no activity / business shall be carried out in the name and style of the previous / converted entity; and
- I declare that the proposed company has its objects in accordance with clause (a) of subsection (1) of section 8 of the Act and it
- ☐ intends to comply with the restrictions and prohibitions as mentioned respectively in clause (b) and clause (c) of that subsection.
- ☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and
- ☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

*DSC

2(c) Particulars of individual first subscriber(s) (other than subscriber cum director)

2(c)(I) Block 1

I. *Director Identification Number (DIN)

Declaration

I * being the subscriber to the memorandum, of the above-named proposed company, hereby solemnly declare and affirm that:

- ☐ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and
- ☐ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years; and
- ☐ I am required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares and the same has been obtained, and is enclosed herewith; or
- ☐ I am not required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares; and
- ☐ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.
- ☐ I provide my consent to the proposed conversion of the entity and have no objection to the same.

☐ I am a member of the company applying for registration under Part I of Chapter XXI of the Companies Act, 2013 and hereby undertake as per Rule 3(4) and Rule 5(i) of Companies (Authorised to Register) Rules that in the event of registration under this Part, necessary documents or papers shall be submitted to the registering or other authority with which the company was earlier registered, within 15 days, for its dissolution, as the case may be. I further undertake that no activity / business shall be carried out in the name and style of the previous / converted entity; and

☐ I declare that the proposed company has its objects in accordance with clause (a) of subsection (1) of section 8 of the Act and it intends to comply with the restrictions and prohibitions as mentioned respectively in clause (b) and clause (c) of that subsection.

☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and

☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

*DSC

*Income-tax permanent account number (PAN)

Declaration

I * being the subscriber to the memorandum, of the above-named proposed company, hereby solemnly declare and affirm that:

☐ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and

☐ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years;

☐ I am required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares and the same has been obtained, and is enclosed herewith; or

☐ I am not required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares; and

☐ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.

☐ I provide my consent to the proposed conversion of the entity and have no objection to the same.

☐ I am a member of the company applying for registration under Part I of Chapter XXI of the Companies Act, 2013 and hereby undertake as per Rule 3(4) and Rule 5(i) of Companies (Authorised to Register) Rules that in the event of registration under this Part, necessary documents or papers shall be submitted to the registering or other authority with which the company was earlier registered, within 15 days, for its dissolution, as the case may be. I further undertake that no activity / business shall be carried out in the name and style of the previous / converted entity; and

☐ I declare that the proposed company has its objects in accordance with clause (a) of subsection (1) of section 8 of the Act and it intends to comply with the restrictions and prohibitions as mentioned respectively in clause (b) and clause (c) of that subsection.

☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and

☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

*DSC

2(d) Particulars of individual first subscriber(s) cum directors

2(d)(I) Block 1

***Director Identification Number (DIN)**

Declaration

I * being the subscriber to the memorandum and named as first director in the articles, of the above-named proposed company, hereby solemnly declare and affirm that:

- ☐ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and
- ☐ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years;
- ☐ I am required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares and the same has been obtained, and is enclosed herewith; or
- ☐ I am not required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares; and
- ☐ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.
- ☐ I provide my consent to the proposed conversion of the entity and have no objection to the same.

I am a member of the company applying for registration under Part I of Chapter XXI of the Companies Act, 2013 and hereby undertake as per Rule 3(4) and Rule 5(i) of Companies (Authorised to Register) Rules that in the event of registration under this Part, necessary documents or papers shall be submitted to the registering or other authority with which the company was earlier registered, within 15 days, for its dissolution, as the case may be. I further undertake that no activity / business shall be carried out in the name and style of the previous / converted entity; and

☐ I declare that the proposed company has its objects in accordance with clause (a) of subsection (1) of section 8 of the Act and it intends to comply with the restrictions and prohibitions as mentioned respectively in clause (b) and clause (c) of that subsection.

- ☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and
- ☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

*DSC

*Income-tax permanent account number (PAN)

BS*****3J

Declaration

I * being the subscriber to the memorandum and named as first director in the articles, of the above-named proposed company, hereby solemnly declare and affirm that:

- ☒ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and
- ☒ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years; and
- ☐ I am required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares and the same has been obtained, and is enclosed herewith; or
- ☒ I am not required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares; and
- ☒ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.
- ☐ I provide my consent to the proposed conversion of the entity and have no objection to the same.

I am a member of the company applying for registration under Part I of Chapter XXI of the Companies Act, 2013 and hereby undertake as per Rule 3(4) and Rule 5(i) of Companies (Authorised to Register) Rules that in the event of registration under this Part, necessary documents or papers shall be submitted to the registering or other authority with which the company was earlier registered, within 15 days, for its dissolution, as the case may be. I further undertake that no activity / business shall be carried out in the name and style of the previous / converted entity; and

☐ I declare that the proposed company has its objects in accordance with clause (a) of subsection (1) of section 8 of the Act and it intends to comply with the restrictions and prohibitions as mentioned respectively in clause (b) and clause (c) of that subsection.

☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and

☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

*DSC

*Income-tax permanent account number (PAN)

AK*****2Q

Declaration

I * being the subscriber to the memorandum and named as first director in the articles, of the above-named proposed company, hereby solemnly declare and affirm that:

- ☒ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and
- ☒ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years; and
- ☐ I am required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares and the same has been obtained, and is enclosed herewith; or
- ☒ I am not required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares; and
- ☒ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.
- ☐ I provide my consent to the proposed conversion of the entity and have no objection to the same.

I am a member of the company applying for registration under Part I of Chapter XXI of the Companies Act, 2013 and hereby undertake as per Rule 3(4) and Rule 5(i) of Companies (Authorised to Register) Rules that in the event of registration under this Part, necessary documents or papers shall be submitted to the registering or other authority with which the company was earlier registered, within 15 days, for its dissolution, as the case may be. I further undertake that no activity / business shall be carried out in the name and style of the previous / converted entity; and

☐ I declare that the proposed company has its objects in accordance with clause (a) of subsection (1) of section 8 of the Act and it intends to comply with the restrictions and prohibitions as mentioned respectively in clause (b) and clause (c) of that subsection.

☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and

☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

*DSC

*Income-tax permanent account number (PAN)

AC*****7D

Declaration

I * VINAY KUMAR RASTOGI being the subscriber to the memorandum and named as first director in the articles, of the above-named proposed company, hereby solemnly declare and affirm that:

- ☒ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and
- ☒ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years; and
- ☐ I am required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares and the same has been obtained, and is enclosed herewith; or
- ☒ I am not required to obtain the Government approval under the Foreign Exchange Management (Non-debt Instruments) Rules, 2019 prior to subscription of shares; and
- ☒ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.
- ☐ I provide my consent to the proposed conversion of the entity and have no objection to the same.

I am a member of the company applying for registration under Part I of Chapter XXI of the Companies Act, 2013 and hereby undertake as per Rule 3(4) and Rule 5(i) of Companies (Authorised to Register) Rules that in the event of registration under this Part, necessary documents or papers shall be submitted to the registering or other authority with which the company was earlier registered, within 15 days, for its dissolution, as the case may be. I further undertake that no activity / business shall be carried out in the name and style of the previous / converted entity; and

☐ I declare that the proposed company has its objects in accordance with clause (a) of subsection (1) of section 8 of the Act and it intends to comply with the restrictions and prohibitions as mentioned respectively in clause (b) and clause (c) of that subsection.

☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and

☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

*DSC

2(e) Particulars of directors (other than first subscribers)

2(e)(I) Block 1

***Director Identification Number (DIN)**

Declaration

I * being named as first director in the articles, of the above-named proposed company, hereby solemnly declare and affirm that:

- ☐ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and
- ☐ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years; and
- ☐ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.
- ☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and
- ☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

***DSC**

*Income-tax permanent account number (PAN)

Declaration

I * being named as first director in the articles, of the above-named proposed company, hereby solemnly declare and affirm that:

- ☐ *I have not been convicted of any offence in connection with the promotion, formation or management of any company during the preceding five years; and
- ☐ *I have not been found guilty of any fraud or misfeasance or of any breach of duty to any company under this Act or any previous company law during the preceding five years; and
- ☐ *All the documents filed with the Registrar for registration of the company contain information that is correct and complete and true to the best of my knowledge and belief.
- ☐ The memorandum and articles of association have been drawn up in conformity with the provisions of section 8 and rules made thereunder; and
- ☐ All the requirements of Companies Act, 2013 and the rules made thereunder relating to registration of the company under section 8 of the Act and matters precedent or incidental thereto have been complied with

*DSC